



CHAPTER cii.

An Act to extend the time for the compulsory purchase of lands and for the construction and completion of the Wolverhampton and Cannock Chase Railway and for other purposes. A.D. 1903.
[21st July 1903.]

WHEREAS by the Wolverhampton and Cannock Chase Railway Act 1901 (in this Act called "the Act of 1901") the Wolverhampton and Cannock Chase Railway Company (in this Act called "the Company") were authorised to construct the railway and works in that Act described :

And whereas it is expedient that the periods limited by the Act of 1901 for the compulsory purchase of lands and for the construction and completion of the railways and works should be extended as by this Act provided and that the period during which the Company are by the same Act authorised to pay interest or dividends upon the amount paid up from time to time in respect of shares in the capital of the Company should be also extended :

And whereas the objects aforesaid cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. This Act may be cited for all purposes as the Wolverhampton and Cannock Chase Railway (Extension of Time) Act 1903 and the Wolverhampton and Cannock Chase Railway Act 1901 and this Act may be cited together as one Act. Short title.

[Ch. cii.] *Wolverhampton and Cannock Chase Railway* [3 EDW. 7.]
(*Extension of Time*) Act, 1903.

A.D. 1903.
Incorporation of Acts. **2.** The Lands Clauses Acts and Part II. (relating to extension of time) of the Railways Clauses Act 1863 are except where expressly varied by this Act incorporated with and form part of this Act.

Interpretation. **3.** In this Act unless there be something in the subject or context repugnant to such construction the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Act of 1901 have the same respective meanings.

Extending time for purchase of lands. **4.** The powers granted to the Company by the Act of 1901 with respect to the compulsory purchase or taking of lands are hereby extended and shall continue in force until the seventeenth day of August one thousand nine hundred and five.

Extension of time for construction of railway. **5.** The powers granted by the Act of 1901 for the construction and completion of the railways and works thereby authorised are hereby extended for the period of two years from the seventeenth day of August one thousand nine hundred and six and on the expiration of that period those powers shall cease except as to so much of the said railways and works as shall then be completed. The said extended period shall with reference to the deposit fund mentioned in section 44 of the Act of 1901 be deemed to be the period limited by that Act for the completion of the railways and works thereby authorised.

Payment of interest out of capital. **6.** The powers conferred upon the Company by section 54 of the Act of 1901 are hereby extended and may be exercised by the Company up to the expiration of the period limited by this Act for the completion of the works by the Act of 1901 authorised.

Restriction on taking houses of labouring class. **7.** The Company shall not under the powers of the Act of 1901 as extended by this Act purchase or acquire in any borough or other urban district or elsewhere than in any borough or urban district any parish ten or more houses which on the fifteenth day of December next before the passing of the Act of 1901 were occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Local Government Board ten or more houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied.

If the Company acquire or appropriate any house or houses for the purposes of this Act in contravention of the foregoing provisions they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable

[3 Edw. 7.] *Wolverhampton and Cannock Chase Railway* [Ch. cii.]
(Extension of Time) Act, 1903.

by the Local Government Board by action in the High Court and shall be carried to and form part of the Consolidated Fund of the United Kingdom. Provided that the Court may if it think fit reduce such penalty. A.D. 1903.

For the purposes of this section the expression "house" means any house or part of a house occupied as a separate dwelling and the expression "labouring class" means mechanics artisans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them.

8. Section 54 of the *Wolverhampton and Cannock Chase Railway Act 1901* shall be read as if in that section the words "shall have deposited with the Board of Trade a statutory declaration by two of the directors and the secretary of the company" were substituted for the words "shall have obtained a certificate from the Board of Trade." Amendment of Act of 1901 as to payment of interest.

9. Nothing in this Act shall exempt the Company or their railway from the provisions of any general Act relating to railways or the better and more impartial audit of the accounts of railway companies passed before or after the commencement of this Act or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels authorised to be taken by the Company. Provision as to general Railway Acts.

10. All costs charges and expenses of and incident to the preparing and applying for and the obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company. Costs of Act.

Printed by EYRE and SPOTTISWOODE,

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